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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;

DEFENDANTS

Case No.: CGC-25-631801
VERBATIM QUOTATIONS
(802 FILINGS)

[caption]

FILING AUTHORITY

AUTHORITY TO FILE AND AUTHORITY FOR ACCEPTANCE

A. Plaintiff's Right to File

Plaintiff files this paper in pro per. Code of Civil Procedure sections 367 (real party in interest), 1014 (appearance), 1010 (notice and papers), 1005(b) (service timing), 916(a) (limited stay; trial court retains jurisdiction over collateral matters), and 425.16(i) (anti-SLAPP appeal does not stay

ancillary proceedings) authorize the filing. Business and Professions Code section 6125 bars only the representation of others and does not prohibit a party from filing papers on the party's own behalf. *Drozdik v. Patten* (1995) 35 Cal.App.4th 1654 (pro per litigant has standing to file). California Rules of Court, rules 8.124(b)(1)(B), 8.155(a)(1)(A), 8.204(a), and 8.252 authorize appellate record preservation filings in the trial court during the pendency of an appeal. Evidence Code sections 452(d), 452(h), 453, and 459 authorize judicial notice requests at both the trial and appellate levels. *Lerner v. L.A. City Bd. of Ed.* (1963) 59 Cal.2d 382, 397 (party may place matters on the trial-court record for appellate preservation). *Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189 to 191 (trial court retains jurisdiction to enforce or modify collateral orders notwithstanding a pending appeal). *Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938 (section 916(a) stay does not divest the trial court of jurisdiction over matters not embraced in or affected by the judgment). U.S. Const. amend. I (petition clause), amend. XIV; Cal. Const. art. I, sections 3 and 7 (due process, petition, and access to courts).

B. Clerk's Duty to Accept

Government Code sections 26800 et seq., 69846.5, and 70617 define the clerk's ministerial duties; none authorizes a clerk to refuse a conforming paper on substantive grounds. California Rules of Court, rules 1.20, 2.100, 2.118, and 2.259(c) govern format compliance and filing obligations. SFTC Local Rules 2.10, 2.11, and 8.10 apply to electronic filings in this court. *Voorhies v. Greene* (1983) 139 Cal.App.3d 989, 994 to 995 (clerk has no discretion to refuse filing of a conforming paper; the duty is ministerial). *Mito v. Temple Recycling Center Corp.* (2010) 187 Cal.App.4th 276, 279 to 280 (refusal to file is subject to mandamus). *Rojas v. Cutsforth* (1998) 67 Cal.App.4th 774, 777 to 778 (clerk cannot require a party to obtain court approval before accepting a conforming document for filing). *Carlson v. Department of Fish and Game* (1998) 68 Cal.App.4th 1268, 1271 (ministerial duty to file conforming papers).

C. Per-Document Authority (Verbatim Quotation Appendix)

California Rules of Court, rule 3.1110(f)(4); rule 3.1306(c); Evidence Code sections 452(d) and 453; *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564 to 1569; *Mangini v. R.J. Reynolds Tobacco Co.* (1994) 7 Cal.4th 1057, 1063; California Rules of Court, rule 8.124(d)(1). This appendix

1 is filed under California Rules of Court, rule 3.1110(f)(4) (bookmark format), rule 3.1306(c) (form
2 of records noticed under Evidence Code section 452(d)), and rule 8.124(d)(1) (content of ap-
3 pendix), in support of the Request for Judicial Notice. Each quotation is reproduced verbatim
4 from a record already in the public docket of CGC-25-631802 or CGC-21-594102, and Plaintiff
5 requests notice only of the existence, contents, legal effect, and adopted litigation position of each
6 record, not of the truth of every embedded assertion. *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548,
7 1564 to 1569.

8 The following block quotations are reproduced verbatim from the 802 defense filings attached
9 as Exhibits Q-1 through Q-8 of the accompanying appendix and from MIL 6 and MIL 17 in the
10 underlying CGC-21-594102 record. Each block is keyed to the row in the Q-1 through Q-13
11 contradiction table in the Memorandum, and to the exhibit and pin cite in the appendix.

12 **SECTION A: FATAL FACTUAL CONTRADICTIONS (Q-1 THROUGH** 13 **Q-8)**

14 The fatal factual contradictions are anchored by the Insurance Code fair-claims frame: CSAA's
15 statutory duty to promptly investigate under Insurance Code section 790.03 and 10 California Code
16 of Regulations section 2695.7 is the predicate for the denial letter, which is in turn the predicate
17 for the litigation positions taken in both cases. Q-1 leads because the MIL truth-claims about
18 nonproduction and unknown provenance of the silent-witness materials directly contradict the 802
19 investigation-claim.

20 **Q-1 (SUBSTANTIVE TRUTH-CLAIM LAYER: LAYER B)**

21 MIL 6, Tx 80936030, filed January 17, 2025 in CGC-21-594102, title: "MOTION IN LIMINE NO.
22 6 TO EXCLUDE RECORDED MATERIALS, PHOTOGRAPHS, OR DOCUMENTS OFFERED
23 BY PLAINTIFF THAT WERE NOT PRODUCED IN DISCOVERY"

24 MIL 6, page 2, Section II.A heading: "Recorded Material, Photographs, Videos, Or Documents
25 Offered by Plaintiff That Were Not Produced In Discovery Should Be Excluded"

26 MIL 6, page 3, lines 1 to 5: "exclude all documents and evidence, including but not limited to
27 videos, photographs, recorded materials, tangible items, or documents including audio of a 911

1 call purported to be related to the incident, Plaintiff’s documents showing past and future wage
2 loss or other evidence that Plaintiff has failed to produce in discovery.”

3 MIL 17, Tx 80936053, filed January 17, 2025 in CGC-21-594102, page 3, lines 1261 to 1262:
4 “First, this alleged log and recording were not produced during discovery, rather produced at the
5 eleventh hour prior to trial.”

6 MIL 17, page 3, lines 1264 to 1265: “Defendant has no idea where this 911 call log or audio
7 recording came from and who created it.”

8 MIL 17, page 4, lines 1312 to 1313: “Defendant has no idea who created the log and recording,
9 how they were maintained, how Plaintiff got them, or the identity of the custodian of the log and
10 recording.”

11 MIL 17, page 4, lines 1313 to 1314: “It does not appear that either the log or the recording were
12 obtained via proper subpoena process.”

13 Layer B anchor: the MIL 6 and MIL 17 passages assert unknown provenance and nonproduction
14 of the same silent-witness materials later described in 802 as part of CSAA’s available-evidence
15 investigation.

16 802 anti-SLAPP MPA (Exhibit Q-1), April 9, 2026, at p. 9: “Here, CSAA reviewed the available
17 evidence, including the statements of its Insured, and reached a prompt denial position.”

18 802 CCP 436 MPA (Exhibit Q-5), April 22, 2026, at p. 6: “CSAA reached a different conclusion
19 from the evidence, and the jury agreed with CSAA. . . . Crucially, the jury reached the same
20 conclusion that CSAA reached in its investigation.”

21 802 CCP 436 MPA (Exhibit Q-5), April 22, 2026, at p. 7: “CSAA performed an investigation,
22 determined that its insured was not liable, and informed Plaintiff of their decision.”

23 **Q-2 (POSSESSION OF 911/BWC/CAD)**

24 801 anti-SLAPP MPA (Exhibit Q-1 mirror at 801 docket), April 9, 2026, at p. 9: “all the alleged
25 activities against these moving Defendants arise from Defendants’ pre-trial investigation and liti-
26 gation activity. That activity includes gathering evidence in discovery, maintaining that evidence,
27 transferring files to substituted counsel, and engaging in pre-litigation investigations.”

28 802 anti-SLAPP MPA (Exhibit Q-1), April 9, 2026, at p. 5 and p. 9: “CSAA-funded counsel

1 subsequently repeated and perpetuated the denial pattern in court by making false and mislead-
2 ing representations regarding receipt, possession, and prior production of the same foundational
3 objective evidence CSAA had failed to obtain before issuing the Denial Letter.”

4 **Q-3 (INVESTIGATION: PERFORMED, INCOMPLETE, OR UNKNOWN-
5 ABLE)**

6 802 anti-SLAPP MPA (Exhibit Q-1), April 9, 2026, at p. 9: “Here, CSAA reviewed the available
7 evidence, including the statements of its Insured, and reached a prompt denial position.”

8 802 CCP 436 MPA (Exhibit Q-5), April 22, 2026, at p. 6: “CSAA reached a different conclusion
9 from the evidence, and the jury agreed with CSAA. . . . Crucially, the jury reached the same
10 conclusion that CSAA reached in its investigation.”

11 802 CCP 436 MPA (Exhibit Q-5), April 22, 2026, at p. 7: “CSAA performed an investigation,
12 determined that its insured was not liable, and informed Plaintiff of their decision.”

13 802 anti-SLAPP Reply (Exhibit Q-7), May 5/6, 2026, at p. 5 footnote 2: “This is setting aside the
14 fact that Plaintiff has no way of knowing what steps Defendant CSAA took in investigating the
15 claim. All Plaintiff has to cite is the denial letter itself.”

16 **Q-4 (CONSTRUCTIVE PETITIONING POSTURE: CSAA’S INSTITU-
17 TIONAL NEXUS TO THE PROTECTED ACTIVITY)**

18 801 anti-SLAPP MPA, April 9, 2026, at p. 6 (cited in the 801 record and quoted in the Memo-
19 randum): “CSAA Insurance Exchange, made multiple false and misleading representations to the
20 Court about receipt, possession, and prior production of the materials. These false representations
21 were memorialized in written motions in limine and in open court statements.”

22 802 anti-SLAPP MPA (Exhibit Q-1) and 802 demurrer (Exhibit Q-3), Section III.D headings: “DE-
23 FENDANT CSAA INITIALLY DENIED PLAINTIFF’S CLAIM AND SUBSEQUENTLY HAD
24 NO ROLE IN LITIGATION, ASIDE FROM RETAINING INSURANCE DEFENSE COUNSELS
25 AND FUNDING THE DEFENSE.”

26 802 demurrer MPA (Exhibit Q-3), April 13, 2026, at p. 14: “CSAA . . . did not actually litigate
27 the trial.”

1 CSAA had to assert this institutional nexus to itself, expressly or by adoption, to obtain 425.16
2 protection in 801; the same nexus cannot be disavowed in 802 to defeat the imputation of the same
3 litigation conduct.

4 **Q-5 (STATEMENTS OF FACT VS. INTERPRETATION DISPUTE)**

5 801 anti-SLAPP MPA, April 9, 2026, at p. 9-11 (cited in the 801 record): the in-court representa-
6 tions about “receipt, possession, and prior production” are CCP section 425.16(e)(1)-(2) statements
7 “in connection with an issue under consideration . . . by a judicial body.”

8 802 demurrer MPA (Exhibit Q-3), April 13, 2026, at p. 9: “None of these allegations constitute
9 ‘knowingly false representations.’ . . . All these allegations substantiate is a good faith dispute
10 over the interpretation of evidence and liability.”

11 **Q-6 (DUTY TO INVESTIGATE INVOKED VS. INVESTIGATION FILE 12 ERASED)**

13 802 anti-SLAPP MPA (Exhibit Q-1), April 9, 2026, at p. 9: “CSAA had a duty to promptly investi-
14 gate Plaintiff’s then-pending claim, as codified in Insurance Code section 790.03 and 10 California
15 Code of Regulations section 2695.7.”

16 802 demurrer MPA (Exhibit Q-3), April 13, 2026, at p. 10: “the Code imposes no duty on CSAA
17 (a third party in the original matter) to provide evidence from their investigation into the event
18 involving their insured.”

19 Plaintiff does not ask the Court to find that the statutory and tort duties are doctrinally identical;
20 Plaintiff asks the Court to find that CSAA cannot shield the investigation file from one motion and
21 erase it from the other.

22 **Q-7 (JURY “PRESENTED WITH” VS. “DEPRIVED OF” EVIDENCE)**

23 801 anti-SLAPP MPA, April 9, 2026, at p. 3: “all this evidence was presented to the jury.”

24 802 anti-SLAPP MPA (Exhibit Q-1), April 9, 2026, at p. 4: “All the ‘foundational objective liabil-
25 ity evidence’ . . . (discussing 911 calls, bodycam footage, and CAD logs) referenced in Plaintiff’s
26 FAC was submitted to the jury.”

27 802 demurrer MPA (Exhibit Q-3), April 13, 2026, at p. 5 (recital of FAC paragraph 25A, undenied):

1 “the jury was deprived of the governing legal standard and foundational evidence.”

2 **Q-8 (FILE TRANSFER KNOWABLE VS. CSAA FILE UNKNOWABLE)**

3 801 anti-SLAPP Reply, May 5, 2026, at p. 3: “These acts (transferring a defense file via email
4 correspondence) are certainly communicative insofar as they require communication qua commu-
5 nication to effectuate such defense team file transfer.”

6 802 anti-SLAPP Reply (Exhibit Q-7), May 5/6, 2026, at p. 5 footnote 2: “Plaintiff has no way of
7 knowing what steps Defendant CSAA took in investigating the claim.”

8 **SECTION B: MAY 12 DOCTRINAL CONTRADICTIONS (Q-9 THROUGH** 9 **Q-13)**

10 The following contradictions are derived from the May 12, 2026 Department 301 findings juxta-
11 posed with the 802 defense positions. Verbatim quotations for these rows appear in the Memorand-
12 um; they are catalogued here for cross-reference completeness.

13 **Q-9 (CCP 425.17(C) INAPPOSITE VS. ANTI-SLAPP FRAMING)**

14 May 12, 2026 finding (801): CCP 425.17(c) inapposite because “litigation conduct, not commer-
15 cial activity.”

16 802 anti-SLAPP MPA (Exhibit Q-1), April 9, 2026: frames the February 25, 2021 denial letter as
17 pre-litigation protected speech under CCP 425.16(e)(1).

18 **Q-10 (CIV. CODE 47(B) ANCHOR INCONSISTENCY)**

19 May 12, 2026 finding (801): Civ. Code 47(b) bars ancillary monetary relief under *Silberg*, *Kashian*,
20 and *Rusheen*.

21 802 demurrer MPA (Exhibit Q-3), April 13, 2026: invokes the same 47(b) framework against
22 pre-suit claims-handling conduct that predates any litigation privilege.

23 **Q-11 (“FULLY LITIGATED” VS. LIMITATIONS ACCRUAL)**

24 May 12, 2026 finding (801): Issues “fully litigated” per RFJN Exs. E-H.

25 802 demurrer MPA (Exhibit Q-3), April 13, 2026: argues limitations accrual from February 25,
26 2021, inconsistent with “fully litigated” resolution.

1 **Q-12 (INTRINSIC FRAUD VS. DEMURRER INSUFFICIENCY)**

2 May 12, 2026 finding (801): Fraud characterized as “intrinsic,” not extrinsic.
3 802 demurrer MPA (Exhibit Q-3), April 13, 2026: argues fraud cause of action insufficiently
4 pleaded under CCP 430.10(e), not that it is intrinsic.

5 **Q-13 (425.16(E)(2) VS. 425.16(E)(1) DOUBLE-COUNTING)**

6 May 12, 2026 finding (801): Prong one satisfied under 425.16(e)(2) (litigation statements).
7 802 anti-SLAPP MPA (Exhibit Q-1), April 9, 2026, and 802 anti-SLAPP Reply (Exhibit Q-7),
8 May 5/6, 2026: simultaneously press 425.16(e)(1) pre-litigation theory for the denial letter, double-
9 counting protection at every temporal phase.

10
11 **SECTION B: TRIAL-RECORD QUOTATIONS (APPENDIX R; SEPA-
12 RATE FROM 802 FILINGS)**

13 RT Vol. 7, Apr. 16, 2025 (Appendix R-2), at p. 157 ll. 5 to 16 (MS. NAVARATNASINGHAM):
14 “this is not anything that we received as part of the subpoena.”

15 MIL 17 (Appendix R-3): “Defendant has no idea where this 911 call log or audio recording came
16 from.”

17 Hr’g Tr. Feb. 18, 2025 (Appendix R-5): MR. JESSUP (production to defense in 2022); MS.
18 NAVARATNASINGHAM: “this is news to me.”

19
20 Each block is offered solely for preservation of the appellate record. Plaintiff seeks no relief from
21 Department 301.

Dated: May 26, 2026



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